

		of Civil Procedure section 1008, because the declarations did not provide any basis for reconsideration.”) In other places in the motion (pgs. 5-6), petitioner cites to events from May 2025, June 2025, and September 2025, but fails to identify why these items that predated the March 13, 2026 hearing were not included in the original motion. The court finds there is no basis under C.C.P. § 1008 to reconsider its ruling of March 13, 2026. As a result, petitioner’s motion is DENIED. The court confirms that the hearing on the Petition (ROA 2) will be on August 14, 2026 at 9:30 a.m. in Department C28. Petitioner’s opening brief shall be filed no later than July 17, 2026. Respondent’s opposition brief shall be filed no later than July 31, 2026. Petitioner’s reply brief shall be filed no later than August 7, 2026. (ROA 76, 77) Respondent shall give notice of this ruling.
54.	Pacheco v. Guardian Storage Centers, LLC 2025-01535561	Defendants Guardian Storage Centers, LLC and StorAmerica Management, LP’s motion to strike portions of first amended complaint is GRANTED with 10 days leave to amend as to the words “and punitive damages” in paragraph 82 only, and otherwise DENIED. <u>Paragraphs 53, 63, 73, 101, 106 & the prayer for relief at item/paragraph 3.</u> The pertinent portions of paragraphs 53, 63, 73, 101, and 106 appear under the third, fourth, fifth, eighth, and ninth causes of action for retaliation for taking pregnancy disability leave, pregnancy discrimination, disability discrimination, failure to prevent retaliation and discrimination, and wrongful termination in violation of public policy, respectively. The prayer for relief at item/paragraph 3 seeks punitive damages under the “[t]hird, [f]ourth, [f]ifth, and [n]inth [c]auses of [a]ction....” (See Compl. at p. 26, ll. 10-13.) The first amended complaint (FAC) alleges sufficient facts in support of “malice” for punitive damages under each of these causes of action. (See Civ. Code, § 3294, subds. (a), (b), (c)(1); FAC ¶¶ 17-18, 48-51, 58-61, 80, 94-99, 153-160 [defendants terminated plaintiff’s employment based in part on the fact that she took protected pregnancy disability leave and then attempted to hide their illegal motive under the false pretext of “business needs”]; see also <i>id.</i> ¶¶ 15, 16, 22, 46, 53, 54, 63, 64, 99 [acting through managing agent Bobby Piccio].)

		<u>Paragraph 82.</u> The FAC fails to allege sufficient facts in support of punitive damages under the sixth cause of action for failure to provide reasonable accommodation, under which paragraph 82 appears. (See Civ. Code, § 3294, subds. (a)-(c); <i>Neisendorf v. Levi Strauss & Co.</i> (2006) 143 Cal.App.4th 509, 517 [“While an employer’s duties under the FEHA include extending reasonable accommodations to an employee if reasonable accommodations will enable the employee to perform his or her essential duties (Gov. Code, § 12940, subds.(a)(1), (2)), there is no similar provision in the CFRA requiring an employer to provide reasonable accommodation to an employee returning from CFRA leave.”]; see also FAC ¶¶ 17-18, 76-77 [defendants provided plaintiff with disability leave for the entire duration of her alleged disabilities].) The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.
55.	ACI Jet Orange County, LLC v. Daichendt 2024- 01379682	Defendant Joseph Daichendt’s Motion to Disqualify Gerald Klein as counsel for any party or witness in this matter is DENIED. As a non-client, Daichendt must establish he has standing to seek disqualification of Klein from representing any other party or witness in these proceedings. “California ... permits a nonclient to move for disqualification of opposing counsel under certain circumstances ... where the ethical breach is manifest and glaring and so infects the litigation in which disqualification is sought that it impacts the moving party’s interest in a just and lawful determination of [his or] her claims, a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.” (<i>Conservatorship of Lee C.</i> (2017) 18 Cal.App.5th 1072, 1083 [internal citations and quotation marks removed] [citing <i>Kennedy v. Eldridge</i> (2011) 201 Cal.App.4th 1197, 1204].) Daichendt attempts to establish standing to seek disqualification of Mr. Klein by arguing that Klein has suborned perjury. “The elements of subornation of perjury are: (1) a corrupt agreement to testify falsely; (2) proof that perjury has in fact been committed; (3) the statements of the witness who committed perjury are material; and (4) such statements were willfully made with knowledge as to the falsity of the statements.” (<i>People v. Lucero</i> (2019) 41 Cal.App.5th 370, 406.) Daichendt reasons that Klein has suborned perjury because his client, William Borgsmiller, in a deposition taken in the